

Chander Pal Singh vs Pooja Devi on 31 January, 2026

IN THE COURT OF CIVIL JUDGE-02, SHAHDARA
DISTRICT, KARKARDOOMA COURTS, DELHI

Presided by : Varun Chandra, DJS.

Civil Suit No: 97/21

Sh. Chander Pal Singh
S/o Sh. Balbir Singh
R/o C-1/372, Gali no. 18,
Harsh Vihar, Delhi-110093

... Plaintiff

Versus

Smt. Pooja Devi
W/o Sh. Pramod Kumar Sharma
R/o D-929, Gali no.
Harsh Vihar, Delhi-110093

Also At:
D-502, Gali no. 30,
Harsh Vihar, Delhi-110093

... Defendant

SUIT FOR RECOVERY OF Rs.3,00,000/- (RUPEES THREE
LAKH ONLY) ALONG WITH INTEREST @ 18% PER
ANNUM.

DATE OF INSTITUTION : 22.01.2021
DATE OF FINAL ARGUMENTS : 20.01.2026
DATE OF DECISION : 31.01.2026

JUDGMENT

1. The plaintiff has filed this suit against the defendant, seeking recovery of Rs.3,00,000/- (Rupees Three Lakh Only) Digitally Chander Pal Singh Vs. Pooja Devi signed by Page No.1 of 12 VARUN CHANDRA VARUN CHANDRA Date:

2026.01.31 17:16:57 +0530 along with interest @ 18 % per annum since 12.12.2017
till realization and cost of the suit.

2. The plaintiff has filed the present case against the defendant praying for the following reliefs which are reproduced as under: -

"It is, therefore, most respectfully and humbly prayed that this Hon'ble Court may
kindly be pleased to:-

a) Pass decree in favour of the plaintiff and against the defendant, her legal heirs, attorneys, legal representatives etc. for recovery of Rs.3,00,000/-

(Rupees Three Lakh Only) along with interest thereon @ 18 per annum since 12.12.2017 till realization of the abovesaid amount;

b) Award the cost of the suit in favour of the plaintiff and against the defendant;

c) Pass any other relief which this Hon'ble court may deem fit and proper in favour of the plaintiff and against the defendant, in the interest of justice."

3. In order to justify the grant of the aforesaid reliefs/prayer, the plaintiff has inter-alia pleaded in the plaint of this suit that the defendant and the plaintiff are known to each other since long time as both are residing in the same vicinity and the defendant and the plaintiff were having good family relations with each other; that in the month of December, 2017, the defendant had approached the plaintiff and demanded a sum of Rs.3,00,000/- as friendly loan from the plaintiff for a period of three months; that acceding the request of the defendant, the plaintiff had advanced a sum of Rs.3,00,000/- in cash to the defendant on 12.12.2017 in the presence of witnesses and a loan agreement was executed between the plaintiff and the defendant Civil Suit No.97/21 Digitally signed by Chander Pal Singh Vs. Pooja Devi VARUN Page No.2 of 12 VARUN CHANDRA CHANDRA Date:

2026.01.31 17:17:03 +0530 on the same day; that the defendant had also executed a receipt in favour of the plaintiff on the same day and the defendant had handed over the original title documents of her property ad- measuring 30 sq. yds. Vide Khasra no. 231, property no. E-126, Village Hakikatpur @ Khudabans, Ram Park Extn., Pargana Loni, Ghaziabad, U.P; that on 12.03.2018, the aforesaid loan agreement was extended to 11.02.2019 with the consent of the defendant and the plaintiff; that after expiry of the said period i.e. 11.02.2019, the defendant had failed to return the aforesaid amount to the plaintiff; that lastly on 25.01.2020, the plaintiff had demanded the aforesaid amount to the defendant but the defendant refused to return the same; that the plaintiff had sent a legal demand notice dated 28.01.2020 to the defendant claiming the aforesaid amount due; that aggrieved by the actions of the defendant, the plaintiff has filed the present suit against the defendant for recovery of Rs.3,00,000/- along with interest @ 18% per annum.

4. The defendant has contested this suit by filing her written statement. In order to contest this suit, the defendant has inter-alia pleaded in his written statement that in the year, 2004, the defendant along with her husband and children used to live as a tenant in the house of the plaintiff; that in 2014, the husband of the defendant had taken a loan of Rs.2,00,000/- from the plaintiff at the interest of 6% per month and in respect of which, the plaintiff had taken two blank cheques bearing no. 139301 and Civil Suit No.97/21 Digitally Chander Pal Singh Vs. Pooja Devi signed by VARUN Page No.3 of 12 VARUN CHANDRA CHANDRA Date:

2026.01.31 17:17:08 +0530 139304 of Union Bank of India, Branch Shahdara, Delhi from the husband of the defendant; that the husband of the defendant regularly paid the interest of the above said loan to the plaintiff but on 23.04.2015, the plaintiff had taken the original documents i.e. Registered Sale Deed etc of the property ad-measuring 30 sq. Yds., registered in the name of the defendant, situated at C-30, Shyam Park Extension Ghaziabad, U.P. as security; that in August, 2016, the husband of defendant had arranged Rs.1,00,000/- and gave to the plaintiff and the husband of the defendant regularly paid the interest till January, 2017 to the plaintiff; that in March, 2017, the plaintiff calculated Rs.4,00,000/- towards the husband of the defendant which the defendant and her husband opposed as the husband of the defendant had already paid more than Rs.4,00,000/- till March, 2017 including the interest and the principle and remaining amount was of Rs.1,00,000/-; that the plaintiff had taken signatures of the defendant and her husband on some papers; that the plaintiff again took another two cheques bearing no.150460 and 150461 of Union Bank of India, Branch Naveen Shahdara as security; that after paying the complete loan amount to the plaintiff, the husband of the defendant demanded his above mentioned cheques and the documents of the property of the defendant again and again but the plaintiff did not return the same to the defendant; that the defendant has no legal liability towards the plaintiff against any kind of loan and the plaintiff has filed the present suit on the basis of false and fabricated facts with malafide intentions and ulterior motive.

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5. No replication has been filed by the plaintiff to the written statement filed on behalf of the defendant.

6. On the basis of the aforesaid pleadings of the parties, the following issues were framed by the Ld. Predecessor of this court, on 09.02.2023:-

"a). Whether the plaintiff is entitled to recovery of Rs.3,00,000/- along with interest at the rate of 18% as prayed? OPP

b). Whether the husband of defendant took a loan of Rs.2,00,000/- from the plaintiff and has already paid Rs.4,00,000/- including the interest and the principle? OPD

c). Relief."

7. During the trial of this suit, two witnesses viz. PW1, Sh. Chander Pal Singh and PW2, Smt. Suman were examined in support of the case of the plaintiff and two witnesses viz. DW1, Smt. Pooja Devi and PW2, Sh. Parmod Kumar Sharma were examined in support of the case of the defendant. The testimonies of the aforesaid witnesses are not being discussed, at this stage of this judgment, for the sake of brevity.

8. In order to adjudicate upon this suit, I had heard Sh. Pramod Singh, Ld. Advocate for the plaintiff on 18.11.2025 and Sh. Ashok Thugal, Ld. Advocate for the defendant on 31.01.2026 Digitally Chander Pal Singh Vs. Pooja Devi signed by Page No.5 of 12 VARUN VARUN CHANDRA CHANDRA Date:

2026.01.31 17:17:18 +0530 ARGUMENTS ADVANCED:-

9. Ld. Advocate for the plaintiff argued that the loan was advanced in the year 2017 and that an agreement along with a promissory note was duly formulated alongwith. He argued that the stated documents were signed by the defendant; That the defendant has still not taken the possession of the property documents submitted to the plaintiff.

10. Ld. Advocate for the plaintiff argued that the receipt for mortgage of jewellery is merely for the amount of Rs.38,000/-, whereas the defendant claims to have returned the complete amount alongwith interest. He argued that the cheques were given with the consent on behalf of the parties; that the receipt dated 12.07.2016 does not mention any specific amount made to the plaintiff.

11. Ld. Advocate for the plaintiff argued that the defendant herself does not the exact amount against which the jewellery was mortgaged; that no specific address was mentioned regarding the office of concerned Muthoot Finance where the jewellery was mortgaged.

12. Ld. Advocate for the plaintiff argued that no formal complaint was preferred by the defendant against the alleged harassment from the plaintiff. He argued that the claim of threats Digitally Civil Suit No.97/21 signed by Chander Pal Singh Vs. Pooja Devi VARUN VARUN CHANDRA Page No.6 of 12 CHANDRA Date:

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13. Ld. Advocate for the plaintiff argued that the defendant is 10th standard pass and the documents were made in Hindi, thereby her claims of not reading the contents of same do not hold any ground. He argued that the defendant does not remember the specific amount or the number of times money was paid to the plaintiff.

14. Ld. Advocate for the plaintiff argued that the husband of the plaintiff, DW-2 admitted to the loan and that same was received with the term of 6% interest. He argued that DW-2 did not remember the dates when loan was allegedly repaid. He further argued that DW-2 admitted his signatures upon the loan document and the payment receipt and that thumb impressions of both defendant

and her husband were admitted on them. He lastly argued that complaint stated by the defendant was not brought on record before the court.

15. Per Contra, Ld. Advocate for the defendant argued that the plaintiff at the time of his cross-examination stated that a loan of Rs.2,00,000/- were given at the interest rate of 6% per month. He argued that an amount of Rs.1,00,000/- was repaid by the defendant by mortgaging her jewellery; and that Rs.1,00,000/- was further paid by the defendant by way of interest.

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16. Ld. Advocate for the defendant argued that it is admitted by the plaintiff that property documents were given by the defendant to the plaintiff. He argued that the plaintiff is a notorious money lender and have multiple matters in the Shahdara District itself. He argued that the signatures were made by the defendant under duress.

17. Ld. Advocate for the defendant argued that the plaintiff has already preferred cheque bounce case against the defendant. He argued that no ITR was furnished by the plaintiff and that the amount was not disclosed in the ITR also.

18. Ld. Advocate for the defendant argued that property documents have already been mortgaged and the present suit should be dismissed as the same is a fabricated case.

19. The issue wise findings, in this case are as follows:

ISSUE NO.1 Whether the plaintiff is entitled to recovery of Rs.3,00,000/- along with interest at the rate of 18% as prayed? OPP

20. The onus to prove the said issue was upon the plaintiff.

21. In order to prove his case , the plaintiff has examined himself as PW1, Sh. Chander Pal Singh. During examination in Digitally Civil Suit No.97/21 signed by Chander Pal Singh Vs. Pooja Devi VARUN VARUN CHANDRA Page No.8 of 12 CHANDRA Date:

2026.01.31 17:17:39 +0530 chief, the plaintiff viz. PW1, Sh. Chander Pal Singh has tendered in evidence his affidavit which is Ex.PW1/1. The plaintiff has deposed in line with the plaint and tendered in evidence documents viz., original loan agreement dated 12.12.2017, Ex.PW1/1(Colly 3 pages); original pay receipt dated 21.12.2017, Ex.PW1/2(Colly); copy of title documents of her property, Ex.PW1/3(OSR); legal notice dated 28.01.2020, Ex.PW1/4 and original two postal receipt of speed posts

dated 29.01.2020, Ex.PW1/5 and Ex.PW1/6.

22. PW2, Ms. Suman Devi has tendered her evidence by way of affidavit which is Ex.PW2/A.

23. In order to prove his case qua this issue, the defendant has examined herself as DW1. During examination in chief, the defendant, DW1, Smt. Pooja Devi has tendered her evidence by way of affidavit which is Ex.DW1/A.

24. PW2, Sh. Parmod Kumar Sharma has tendered his evidence by way of affidavit which is Ex.DW2/A.

25. The plaintiff claims that he had given the defendant an amount of Rs. 3 lakhs by way of cash wherein the defendant had undertaken to return the same within a period of 3 months; that despite extending the time period, the defendant failed to pay any amount whatsoever. Whereas, the defendant had contested the claim of the defendant stating that a loan of Rs. 2 lakhs was taken Civil Suit No.97/21 Digitally signed by Chander Pal Singh Vs. Pooja Devi VARUN Page No.9 of 12 VARUN CHANDRA CHANDRA Date:

2026.01.31 17:17:45 +0530 instead in the year 2014 upon interest and substantial payments had already been made.

26. While the loan was admitted by the defendant, no documentary proof was furnished before the court whatsoever. The defendant admitted to submitting property documents in lieu of the loan; and further admitted her signatures upon the loan document vide Ex. PW1/1 and upon the pay receipt dated 12.12.2017 vide Ex. PW1/2. The defendant claimed that she had to mortgage her jewellery for payments to the plaintiff, however, failed to furnish any proof of receipt. The plaintiff, in order to expedite the trial admitted to the fact that the defendant might have taken a mortgage on said jewellery, however, no receipt of payment to the plaintiff was furnished before the court.

27. Nothing of contradictory value was brought on record at the time of cross-examination of the plaintiff or her wife, PW-2. The plaintiff even pointed out the denomination of currency notes successfully. The fact that the defendant was residing as a tenant was duly admitted by her in her cross-examination. No complaint against the plaintiff was preferred by the defendants against the alleged behavior of the plaintiff; a complaint was stated to be preferred during the pendency of present suit, however, no copy of same was furnished before this court. The husband of the plaintiff, DW-2 admitted his signatures upon Ex.PW1/1 and Ex. PW1/2 as well. No specific dates for repayment of loan were mentioned by him.

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28. All being said and done, the court is of the opinion that the plaintiff has succeeded in proving his claim on the scale of preponderance of probability and thereby present issue is awarded in favor of the plaintiff and against the defendant.

ISSUE NO.2 Whether the husband of defendant took a loan of Rs.2,00,000/- from the plaintiff and has already paid Rs.4,00,000/- including the interest and the principle? OPD

29. The onus to prove the said issue was upon the defendant. As already discussed, the defendant has failed to furnish any evidence before this court to corroborate her claim of taking a loan of Rs. 2 lakhs and subsequent substantial payments being made to the plaintiff by her. Both the defendant and her husband had admitted to the signatures upon the loan document. The defendant, thereby, has failed to prove that alleged amount of Rs. 2 lakhs was taken without any specified date of return along with substantial payments being made by her to the plaintiff.

30. In view of same, present issue is decided against the defendant and in favor of the plaintiff.

RELIEF

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Chander Pal Singh Vs. Pooja Devi

31. Thus, as a net result of the aforesaid discussion, the present suit is decreed in favour of the plaintiff and against the defendant for a sum of Rs. 3,00,000/- (Rupees Three Lakh Only) along with pendente-lite interest at the rate of 12% per annum and future interest at the rate of 8% per annum till the date of realization. Cost of this suit is also awarded in favour of the plaintiff.

32. After preparation of the decree sheet by the Reader, the file shall be consigned to the record room.

Note : This judgment contains 12 pages and all the pages have been checked and signed by me. Digitally signed by VARUN VARUN CHANDRA CHANDRA Date:

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31.01.2026 CJ-02/Shahdara District Karkardooma Courts/Delhi Chander Pal Singh
Vs. Pooja Devi